

25NNCV06270 25NNCV06270

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25NNCV06270 Hearing Date: September 23, 2026 Dept: B

Hon. Victor

Avila, Dept B

MOTION TO BE RELIEVED AS
COUNSEL

Hearing Date: 9/23/26

CASE NO.: 25NNCV06270

CASE NAME: Susan Sahakyan, et al. vs. Julia Dawn Antle, et al.

Moving Party: Defendant Julia Dawn Antle's Counsel

Responding Party: None

Notice: None

Ruling: GRANTED

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00

P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

Attorneys

Kimberly S. Oberrecht, Esq. and Kaylee

N. Riddle, Esq. (collectively, Counsel) represents defendant

Julia Dawn Antle (Defendant) in this personal injury action. On September 10, 2026, Counsel filed the initial motion to be relieved as counsel. On September 11, 2026, Counsel filed the instant amended motion to be relieved as counsel as to Plaintiff. Counsel cites a lack of cooperation.

No

opposition has been filed as of September 17, 2026.

LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284(2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court, 1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court, rule 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court, rule 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Court, rule 3.1362(e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant, (1994) 21 Cal.App.4th 904, 915.)

DISCUSSION

Counsel has filed the notice of motion to be relieved as counsel on form MC-051 (Cal. Rules of Court, rule 3.1362(a)), a declaration on form MC-052 (Cal. Rules of Court, rule 3.1362(c)), and proposed order on form MC-053. (Cal. Rules of Court, rule 3.1362(e).) Counsel's declaration identifies a Status Conference and OSC scheduled for September 16, which has now passed. (Riddle Decl., ¶ 4.) Counsel also identifies an upcoming final status conference scheduled for November 3, 2026. (Riddle Decl., ¶ 5.)

Counsel declares that since the onset of the case, their office has been unable to contact or locate Defendant. (Riddle Decl., Attachment 2, ¶ 4.) Counsel declares that this lack of cooperation has made it extremely difficult to defend Defendant (Ibid.) Counsel declares that they have sent engagement letters to Defendant's last known addresses after Defendant Penske retained their services in the action, however the letters were sent back as undeliverable. (Riddle Decl., Attachment 2, ¶¶ 4-5.) Further, Counsel declares that they filed an answer on her behalf to ensure she was not defaulted but have had no contact with Defendant. (Riddle Decl., Attachment 2, ¶ 7.) Counsel declares that a private investigator might have finally located Defendant in June 2026, but she would not confirm her identity, "was not in her right mind" and seemingly living in a "homeless encampment". (Riddle Decl., Attachment 2, ¶ 10.)

Counsel argues that although they have been unable to serve Defendant, the court should still grant the motion because they have never had any contact with Defendant and cannot effectively represent her. (Riddle Decl., ¶ 3(c).) Further, although Counsel believes they might have located her in an encampment, they were not able to confirm her identity. (Ibid.)

The Court finds that Counsel has set forth sufficient grounds to be relieved as counsel for Defendant. Also, the motion complies with the requirements of California Rules of Court, rule 3.1362. Although trial is set for November 16, 2026, the Court finds that withdrawal at this stage of litigation will not prejudice Defendant because she has not been involved in this action based on representations made by Counsel. Defendant has not filed an opposition contending otherwise.

CONCLUSION AND ORDER

Attorneys Kimberly S. Oberrecht, Esq. and Kaylee N. Riddle, Esq.'s motion to be relieved as counsel is GRANTED.

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 10 days from this date.